

By a person entitled to have a new trustee appointed in a case where there is no power in the instrument creating the trust to appoint new trustees, or when the power cannot be exercised, and seeking to appoint a new trustee.

11.
Bill for appointment of a new Trustee.

IN CHANCERY.

To the Honourable, &c.

Humbly complaining, &c., your orator, &c., that under an indenture, dated the _____ day of _____, and made between (parties), (or will of _____, or other document, as the case may be), he, the said A. B., is interested in the certain trust property therein mentioned or referred to; and that C. D., the defendant hereinafter mentioned, is the present trustee of such property (or, is the real or personal representative of the last surviving trustee of such property, as the case may be); and that there is no power in the said indenture (or will, or other document) to appoint new trustees (or that the power in said indenture, or other document, to appoint new trustees cannot be exercised). To the end therefore that the said A. B. may have new trustees appointed of the said trust property, in the place of, &c. (or to act in conjunction with) the said C. D.

(And for further relief; pray subpoena.)

The above follows the English form No. 11.

Under the English Order of April, 1850, there are two forms not here adopted as applicable under the 77th Order. One is a "claim" for specific performance. This is not adopted, because, as it will be seen by the Order 1, of January, 1851, specific performance cases are not brought under the operation of the 77th Order; while in England they do form a class of cases in which the proceedings may be by "claim." The Order in England is to the effect, that a claim may be filed, instead of a bill, "in any case where the plaintiff is or claims to be." [Then follow the cases enumerated in the above Order 1—except that the words referring to real assets of deceased parties are admitted, and there is no reference to judgment creditors, as in the 6th article—with the addition of the following clause (8). "A person entitled to the specific performance of an agreement for the sale or purchase of any property, seeking such performance."]

Similar to English form.

Forms in English Orders, not adopted here.

Specific performance cases not within Order I. of January, 1851.

Within the operation of English claim orders.

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